

opposition division, the board observed that it was generally accepted that the principle of free evaluation of evidence applied before the EPO (G. 3/97, G. 1/12), which also had to have an impact on the review during the appeal proceedings (T. 1107/12, T. 621/14). Provided that there had not been an error in the application of the law (e.g. an incorrect standard of proof had been applied), a board of appeal should therefore only overrule the evaluation of evidence made by a department of first instance and replace it with its own if that department's evaluation of the evidence clearly had one of the following shortcomings: (i) essential points had not been considered (T. 1553/07), (ii) irrelevant matters had been taken into consideration (T. 2565/11) or (iii) the laws of thought had been violated, for instance in the form of errors in logic and inconsistencies in the reasoning (T. 2565/11). In the case in hand the board considered that the opposition division's evaluation of evidence was not open to objection. Unlike the opposition division, however, the board was of the opinion that public prior use at trade fairs was novelty-destroying.

T. 1418/17 has to date been cited by three decisions. Decision T. 1057/15 referred to the principles laid down in the second catchword of T. 1418/17 and endorsed the opposition division's evaluation of the evidence and facts in the case in hand; decision T. 41/19 endorsed the basic principle stated in T. 1418/17. And T. 1604/16 did not follow T. 1418/17 and considered that the boards have competence to review appealed decisions in full, including points of law and fact. Decision T. 1069/14 endorsed decision T. 1604/16.

In T. 1604/16, the invention related to a foldable ramp for loading a wheelchair into a vehicle. The opposition division had based its assessment on E1, E1/1 (with photographs) and the testimony given by a witness (buyer of the vehicle equipped with the ramp). The evidence adduced before the board included documents E1, E1/1 and the minutes of the hearing of the witness at first instance. There were no issues in terms of the witness's credibility (see in general T. 474/04). In the board's view, the principle of the free evaluation of evidence has no direct bearing on the extent of the boards' competence to review decisions. The board referred to the explanatory remarks to Art. 12(2) RPBA 2020 that the boards have competence to review appealed decisions in full, including points of law and fact. The board was aware that there is case law on a restriction of the boards' competence when reviewing discretionary decisions and did not consider the evaluation of evidence to be a discretionary decision. The board did not see any reason why it should limit its review of the opposition division's findings of fact in the context of the public prior use by applying the criteria set out in decision T. 1418/17. In the case in hand, in view of several remaining doubts which arose from the content of the minutes, the board held that the evidence produced was insufficient and hence that the opposition division had erred in concluding that the ramp shown in E1/1 formed part of the prior art. See also chapter V.A.3.2.1. "Primary object of the appeal proceedings – Article 12(2) RPBA 2020".

c) Events long past

In T. 1191/97 the appellant's criticism of the evaluation of evidence by the department of first instance did not pose a serious threat to the witness's credibility. The fact that the events at issue had taken place a long time ago could readily explain certain imprecisions in the witness's testimony. The board saw no indication that the witness had been in breach of his obligation to testify to the best of his recollection.

In **T.61/07**, the board made clear that the doubts cast by the respondent on the witness's memory about events which had happened 23 years ago concerned not the witness's credibility but the **credibility of the testimony**. However, it saw no reason to doubt that his testimony was credible. Just because the witnesses had each independently met a third witness before being heard did not automatically mean that their recollections had been influenced. Shortly before a party alleges prior use, witnesses are normally sounded out about what they actually remember. Such a **discussion with a potential witness** did not automatically imply that during it the party or one of its staff had influenced what the party remembered.

In the circumstances of case **T.918/11**, the board considered that the reasoning of the impugned decision that "... the mere declaration of one witness in connection with facts which occurred between 1992 and 1997, i.e. at least 14 years ago, is not sufficient to prove the details of prior use" was not well founded.

In **T.905/94** the board held that the fact that one witness had made his declaration three years earlier than other witnesses was not sufficient reason to make his testimony more credible.

With regard to the credibility of witnesses, the board observed in **T.1210/05** that even a person who was not being dishonest might make untrue statements. A person can be honestly mistaken in his recollection of an event, particularly if the event took place some time previously.

In **T.483/17** (prior use – up to the hilt), the respondent (patent proprietor) doubted that the witness had been able, in his declaration on oath, to reproduce all the details about the delivery, which had taken place more than 10 years earlier, and pointed out that the appellant, who had obviously pre-drafted this declaration, must have had more information and documents than it was willing to submit in these proceedings. However, since the declaration was not needed to convince the board of the delivery, any "inconsistency" in it was irrelevant.

T.2165/18 (see also the abstract below, under "Archives and internet publications") turned on an undated user manual that had been published online. The board ultimately found that the statements made by a witness were not enough on their own to fill in the gaps in the evidence as to its date of publication and the software version it had been supplied with. It was unlikely that a witness, even if the manual's author, would still be able to remember the whole text nine years later. The opponent cited the decisions in **T.1798/14**, **T.2565/11** and **T.918/11** in support of its contention that a **single witness's testimony** could in fact be enough to prove prior use and that a witness could also fill in gaps in the alleged facts, but the board rejected this position, ruling that they did not apply in the evidential situation in the case in hand. See also **T.939/14** below.

d) Contradictory or consistent testimony

In **T.361/00**, as to the two **statutory declarations** (relating to visits to a cement works), the board had no doubt that they had been made in good faith but found them to be

contradictory. Having found that the appellant's (opponent's) submissions at the oral proceedings had not clarified the contradictions, it concluded that the appellant had failed to furnish conclusive proof of the alleged prior use. Lastly, it held that there was no need to hear the witness, giving reasons for this finding (on contradictory statements, see also T 833/99 and T 832/13, serious doubts due to the general nature of the statement).

In T 1266/16 the board stated that, notwithstanding that the two declarations submitted were **"word-for-word identical"**, they did not contain any specific detail with respect to the suppliers they referred to, let alone any data regarding purchase or analysis performed. As such, these statements, **unsupported by any corroborating evidence**, could not be considered as proof of the appellant's argument.

In T 1914/08 the board – like the opposition division at first instance – regarded two witnesses' testimonies as the decisive evidence proving without any gaps the alleged prior public use. Each testimony, considered in isolation, gave a consistent and full picture of the process in question.

In T 1293/13, to overcome an objection of insufficient disclosure based on a reference to a machine that was no longer in existence, the proprietor had submitted a statement from the president of the company that manufactured machines of this kind attesting that the results would be the same irrespective of the machine used. The board was not persuaded by the statement as it was not based on any verifiable data.

On an alleged prior use, the board in T 453/02, disagreeing with the patent proprietor (respondent), held the content of three statements to be consistent and convincing. Furthermore, the impartiality of the first statement could not be doubted as it had been made by the patent proprietor itself. In any event, the proprietor could not plausibly argue that the alleged public prior use had been based solely on testimony given after the date of filing of the contested European patent application. That testimony had been corroborated by other evidence (original trade fair catalogue bearing a date).

In T 1043/93 the deposition of the witnesses (who did not bring documents as requested by the board) contained unclear answers, inconsistencies, and were in conflict with another, so that the board found that the related alleged public prior use was not proven and could not be considered to belong to the prior art (Art. 54(2) EPC)

In T 100/97, without casting doubt on the good faith of the submitted declaration, the board stated that for the content of such statements to be considered sufficiently credible, it had to be **corroborated by documents of a definite date**. In the absence of any such documents, the board decided that it could not be established with a sufficient degree of certainty what had been made available to the public before the priority date of the opposed patent.

In T 2546/17 the board found that contradictions between the information in documents D7 and D9 (internet citation) when compared with document D11 cast general doubt on the reliability of document D11 (an email written nine years after the last date mentioned

on document D7 by a person (librarian) not mentioned in document D7). D7 did not belong to the relevant state of the art.

In T 473/93 the board decided that the appellant's surmise that he had been in error in making his statutory declaration was not sufficient to allow orally presented facts which deviated from the declaration to appear more credible. The fact alleged orally therefore had to be regarded as not proven.

An **unsigned statement** by an unknown and unnamed person should in principle be given minimal weight (T 750/94, OJ 1998, 32; T 1818/12). In T 212/97, the board could not regard the citation of facts based on **hearsay** and not accompanied by a witness testimony as adequate evidence for the alleged prior uses.

In T 939/14, the patent proprietor complained that the opposition division had ruled after having heard **just one witness**. Addressing its objection that, as per the decision in T 1210/05, a single item of testimony was insufficient to rule on the facts beyond any reasonable doubt, the board held that no such general principle could be gathered from that decision or, for that matter, from the case law of the boards of appeal in general. Cf. T 2165/18 *supra*.

e) Witness testimony and national proceedings

In **national proceedings** before the Dutch District Court and Court of Appeal, several witnesses had been heard, and written statements had been introduced by both parties. The Dutch Court of Appeal could not establish an uninterrupted chain of proof that the alleged public prior uses had indeed taken place before the priority date of the contested patent. After evaluating the Dutch Appeal Court's findings, the board's judgment in T 665/95 was that no further investigations were necessary and that the conclusion of the Dutch Appeal Court could be followed, with the consequence that the subject-matter of the granted claim 1, contrary to the impugned decision of the opposition division, was considered to be novel. Other examples of cases dealing more generally with national proceedings and issues of evidence include T 760/89, OJ 1994, 797 (USA); T 582/90 (FR), T 1043/93 (IT), T 885/02 (NL); T 276/07 (IT); R 21/09 (UK); T 1904/12 (DE), T 202/13 (NO) and T 2220/14 (USA).

In T 407/08 the appellant (patent proprietor) filed a copy of an expert opinion which was ordered by a German Court in a patent dispute. A statement according to general experience in this expert opinion was taken into account by the board to conclude that a given feature was not implicit to a skilled person (Art. 100(c) EPC).

f) Obligation to raise objections under R. 106 EPC

In case R 8/17 the Enlarged Board of Appeal recalled that an objection under R. 106 EPC must be expressed and specific. The petitioner claimed that it raised the objection in the oral proceedings but neither the minutes – it had not been requested that they be corrected because incomplete – nor the written reasons contained any indication of such an

objection. Furthermore, the affidavit of the petitioner's representative submitted with the petition did not assist the petitioner on this crucial point.

4.2.3 Test and experimental evidence

a) Test methodology and probative value

In T.702/99 the board made extensive remarks with regard to the probative value of test evidence. It noted that it was essential that **comparative tests** conducted by a number of persons as evidence for or against qualities such as an improved "feel" of a product (e.g. cosmetics) be made under conditions of maximum objectivity on the part of those conducting the tests. Parties to proceedings should adopt the same standards in the preparation of such test evidence as they should in the preparation of experimental evidence. While the use of independent persons would naturally tend to carry more weight, the use of employees might not be objectionable per se as long as the test conditions were designed to ensure that the employees were not biased by prior knowledge of either the tested products or of their employer's expectation of the test result. The presentation of test evidence also had to be accurate, but the format of the presentation was of secondary importance; a carefully prepared report and/or table might convey as much information as a large number of statements from the testers.

In T.275/11 (bleaching/highlighting composition for hair) in order to demonstrate that the problem was successfully solved, the appellant (patentee) referred to two comparative examples. The board cited T.702/99 and recalled that it was desirable to show that the tests had been **carried out under "blind" conditions** to avoid any suspicion of bias. The board found that there was no indication of the conditions under which these tests had been conducted. Therefore, any effects referred to by the appellant had to be disregarded.

In T.103/15, on the matter of test reports ("*rapports d'essai*") filed by the opponent (appellant), the board, with reference to T.702/99, stated that, with respect to the probative value of test evidence, it was important not only to indicate the conditions under which those tests had been conducted, but also to specify the names of the testers and their employers so that the relationship between the testers and the party could be established if necessary. This also applied in cases where the opponent was acting as a **straw man** on behalf of a company, because then the relationship between that company and the testers could be a factor in deciding on the probative value of the test evidence filed by the straw man. A neutral institute could have been assigned to perform the tests. The appellant had been given the **opportunity to provide the relevant information** about the authorship of the test report D9 during the oral proceedings, but had **refused** to do so (see minutes). Lastly, the reasons for not considering document D9 during the first-instance opposition proceedings still applied at the appeal stage. In view of the test report's limited probative value, the board did not take it into account when reviewing the opposition division's decision.

In T.301/94, on the issue of novelty, the board stated that analyses produced by the opponent (Saint-Gobain Emballage) showed that the results obtained by two laboratories (the laboratories of the Institut National du Verre in Belgium and of Saint-Gobain